

SENATE BILL 505

By Powers

AN ACT to amend Tennessee Code Annotated, Title 16
and Title 40, relative to veterans treatment courts.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 16, Chapter 6, Part 1, is amended by adding the following new section:

Notwithstanding another law to the contrary, a defendant may file a motion to transfer the defendant's criminal case to the veterans treatment court program of a contiguous county having a population of not less than two hundred twenty thousand (220,000) nor more than two hundred twenty thousand one hundred (220,100), according to the 2020 federal census or any subsequent federal census. The court with jurisdiction over the defendant's case may transfer the case if:

- (1) The veterans treatment court program in the contiguous county would have jurisdiction over the case if the offense had been committed in such county;
- (2) The defendant files with the court a written waiver of the right to be tried by an impartial jury of the county in which the crime was committed; and
- (3) The district attorney general for the contiguous county agrees to accept transfer of the case.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.